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California Legislature First to Pass Ban on 4 Food Additives Linked to Health Issues

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WEDNESDAY, Sept. 13, 2023 (HealthDay News) -- California is on track to become the first state to ban four food additives that some experts have linked to health issues ranging from behavioral problems in children to reproductive issues to cancer in lab animals.

On Tuesday, the legislature passed Assembly Bill 418, which now awaits the signature of Gov. Gavin Newsom.

The substances are permitted by the U.S. Food and Drug Administration, so this would be the first time a state has banned items allowed by federal regulators. The chemicals are already illegal in the European Union and other places around the world, NBC News reported.

The ingredients are red dye No. 3, potassium bromate, brominated vegetable oil and propylparaben. The restriction would begin in 2027.

"It's going to make our food supply much safer," Assembly member Jesse Gabriel, who introduced the bill along with Assembly member Buffy Wicks, told NBC News. "It's going to give parents more confidence that when they're buying foods at the grocery store, they don't have to worry that there's something in there that's dangerous for their kids."

Although red dye No. 3 is banned in cosmetics because of its history of causing cancer in lab animals in high doses, it's still allowed as a food coloring. Potassium bromate allows bread and baked goods to rise higher and improves texture. Brominated vegetable oil keeps flavoring from floating to the top of citrus drinks, while propylparaben helps preserve food.

Studies on red dye No. 3 have shown associations between the ingredient and behavioral issues such as hyperactivity, NBC News reported, although the FDA has said there is no evidence of this happening in the general population of children not diagnosed with behavioral issues.

Banning these additives in California could mean food ingredients will change nationwide.

Scott Faber, senior vice president of government affairs for research and advocacy at the Environmental Working Group, expects large manufacturers will remove the additives everywhere.

"I expect all the companies that make cookies, candies and other processed foods to quickly reformulate well before that 2027 deadline," said Faber, according to NBC News.

"This is a truly historic win for consumers," Faber said. "No one should have to worry about eating toxic chemicals."

Gabriel noted the additives are often in packaged foods targeted toward children, low-income communities and minorities.

An analysis by the Assembly Health Committee found there are readily available alternatives to these ingredients, NBC News reported.

"This is not going to lead to any products or any foods coming off the shelf. This is not a ban on any food or any product," Gabriel said. "It is simply going to require companies to make very, very minor modifications to their recipes, which are the same recipes that they're already using in other countries.

"Another goal here was to send a message to the FDA, to send a message to Washington, D.C., to send a message to the industry, and passing this bill with strong bipartisan support is a much more effective way to do that," Gabriel said.

In response to the passage, the International Association of Color Manufacturers referred to a statement on its website, which said, no regulatory authority, including the FDA, "has found credible safety concerns with FD&C Red No. 3 and maintains it is safe for use in food."

More information

The U.S. National Library of Medicine has more on food additives.

SOURCE: NBC News

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